

24STCV24494 24STCV24494

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-09-22

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Case Number: 24STCV24494 Hearing Date: September 22, 2026 Dept: 413

TENTATIVE RULING

HEARING

DATE: September 22, 2026

CASE NUMBER: 24STCV24494

CASE NAME: Jennifer Guttridge v. Baden V Mansfield, et al.

MOVING PARTY: Defendants Baden V. Mansfield
and Law Offices of Baden V. Mansfield

OPPOSING PARTY: Plaintiff Jennifer Guttridge

PROCEEDING: DEMURRER TO SECOND
AMENDED COMPLAINT

RULING SUMMARY: The Demurrer is overruled.

Background

On September 20, 2024, Jennifer Guttridge ("Plaintiff") filed this professional negligence action against Baden V. Mansfield and Law Office of Baden V. Mansfield (collectively, "Defendants") and Does 1 to 10. On February 5, 2026, the Court sustained Defendants' demurrer to Plaintiff's first amended complaint with leave to amend, finding that it was subject to a statute of limitations

defense.

The Second Amended Complaint

("SAC") was filed on March 9, 2026. Defendants

demur to the single cause of action for professional negligence on the basis that the claim is barred by the statute of limitations. Plaintiff opposes the demurrer.

Demurrer[1]

I. Legal Standard

Where

pleadings are defective, a party may raise the defect by way of a demurrer. (Coyne v. Krempels (1950) 36 Cal.2d 257, 262.) A demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters.¿ (CCP, § 430.30(a); Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) In evaluating a demurrer, the court accepts the complainant's properly pled facts as true and ignores contentions, deductions, and conclusory statements. (Daar v. Yellow Cab Co. (1976) 67 Cal.2d 695, 713; Serrano v. Priest (1971) 5 Cal.3d 584, 591.) Moreover, the court does not consider whether a plaintiff will be able to prove the allegations or the possible difficulty in making such proof. (Fisher v. San Pedro Peninsula Hospital (1989) 214 Cal.App.3d 590, 604.)

Leave

to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.)¿ The burden is on the complainant to show the Court that a pleading can be amended successfully. (Ibid.)

II. Discussion

A.

Factual Summary

By Ruling on February 5, 2026, Defendant's

Demurrer to Plaintiff's First Amended Complaint ("FAC") was sustained with leave to amend, on the ground that she had failed to allege in more than a conclusory manner when she discovered the alleged malpractice after her new

attorneys started to represent her in September 2023. The SAC has added factual allegations to “show the time and manner of discovery and (2) inability to have made earlier discovery despite reasonable diligence.” (Salter v. Pierce Brothers Mortuaries (1978) 81 Cal.App.3d 292, 297; see E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1326.) In paragraphs 16 to 22, Plaintiff alleged facts as to when the alleged malpractice was discovered, the circumstances under which it was discovered, and Plaintiff’s lack of fault for failing to discover it. (See Community Cause v. Boatwright (1981) 124 Cal.App.3d 888, 900.)

In sum, Plaintiff has corrected the deficiencies on the basis of which the Demurrer to the FAC was sustained with leave to amend.

Conclusion

Defendants’ demurrer to the SAC is overruled.

Date: _____

William E. Weinberger

Judge, Los Angeles Superior Court

[1]

Pursuant to Code Civ. Proc. § 430.41, the meet and confer requirement has been met.